

Chief Justice's Court

Case :- WRIT - C No. - 70238 of 2010

Petitioner :- Kanpur Electricity Supply Comp. Ltd. And Another

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Mridul Tripathi

Respondent Counsel :- C.S.C.,A.N.Singh

Hon'ble Ferdino Inacio Rebello,Chief Justice

Hon'ble Vineet Saran,J.

Prima facie, it appears that this matter is to be heard by learned Single Judge. Registry to examine the matter and place it before appropriate Bench on Monday i.e. on 6th of December, 2010.

Order Date :- 3.12.2010

VMA

(F.I. Rebello, C.J.)

(Vineet Saran, J.)

Court No. - 21

Case :- WRIT - C No. - 70238 of 2010

Petitioner :- Kanpur Electricity Supply Comp. Ltd. And Another

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Mridul Tripathi

Respondent Counsel :- C.S.C.,A.N.Singh

Hon'ble V.K. Shukla,J.

Sri A.N. Singh, Advocate has accepted notice on behalf of respondent no. 2. Learned Standing counsel has accepted notice on behalf of respondent no. 1.

Issue notice to respondent nos. 3 and 4 returnable within next eight weeks.

List after eight weeks.

Amount in question so deposited, shall abide by outcome of writ petition in question.

Order Date :- 7.12.2010

Dhruv

Court No. - 21

Case :- WRIT - C No. - 70238 of 2010

In

Impleadment Application

Petitioner :- Kanpur Electricity Supply Comp. Ltd. And Another

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Mridul Tripathi

Respondent Counsel :- C.S.C.,A.N.Singh

Hon'ble V.K. Shukla,J.

On the matter being taken up today, Sri B.C.Rai, Advocate requested that as some apparent error is there in the impleadment application, as such said impleadment application is dismissed as not pressed with liberty to file fresh application.

Request made is accepted in this regard.

Consequently, impleadment application is dismissed with liberty to file fresh application.

Order Date :- 18.2.2011

Sanjeev

Court No. - 2

Case :- WRIT - C No. - 70238 of 2010

Petitioner :- Kanpur Electricity Supply Comp. Ltd. And Another

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Mridul Tripathi

Respondent Counsel :- C.S.C.,A.N.Singh,B.C.Rai

Hon'ble Sudhir Agarwal,J.

Passed over on the illness of Sri Mridul Tripathi, appearing for the petitioner.

List in the next cause list.

Order Date :- 4.11.2011

KA

Court No. - 2

Case :- WRIT - C No. - 70238 of 2010

Petitioner :- Kanpur Electricity Supply Comp. Ltd. And Another

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Mridul Tripathi

Respondent Counsel :- C.S.C.,A.N.Singh,B.C.Rai

Hon'ble Sudhir Agarwal,J.

This is a second consecutive illness slip sent by Sri Mridul Tripathi, learned counsel for the petitioners seeking adjournment on the said ground.

List peremptorily in the next cause list and it is made clear that this case shall not be adjourned on the next date at the instance of learned counsel for the petitioners.

Order Date :- 15.11.2011

Kpy

Court No. - 2**Case :-** WRIT - C No. - 70238 of 2010**Petitioner :-** Kanpur Electricity Supply Comp. Ltd. And Another**Respondent :-** State Of U.P. & Others**Petitioner Counsel :-** Mridul Tripathi**Respondent Counsel :-** C.S.C.,A.N.Singh,B.C.Rai**Hon'ble Sudhir Agarwal,J.**

01. Heard Sri Tripathi, learned counsel for the petitioners and perused the record.

02. The writ petition is directed against order dated 20.7.2010 passed by Electricity Ombudsman confirming order dated 18.2.2010 of District Consumer Grievance Redressal Forum awarding damages of Rs.9095/- at the rate of Rs.85/- per day for 114 days in accordance with paragraph 7.7.2 of Electricity Supply Code, 2005 (hereinafter referred to as 'Code, 2005').

03. It appears that respondent no.4 applied for an electric connection at premises 8/56-C, Arya Nagar, Kanpur but the electric connection was not released. In the situation, respondent no.4 approached District Consumer Grievance Redressal Forum (hereinafter referred to as 'DCGRF') in Complaint No.55 of 2009 which was allowed vide order dated 29.7.2009 observing as under:-

“परिवादी एवं केस्को के द्वारा प्रस्तुत सभी अभिलेखों का परीक्षण किया गया तथा उनके पक्षों को भी सुना गया। फोरम के समक्ष प्रेषित फ्लैट की रजिस्ट्री के अवलोकन से विदित होता है कि बहुमंजिला भवन 84 वर्ग मीटर (100 वर्ग गज) के प्लॉट पर बनाया गया है। रजिस्ट्री के पृष्ठ सं० 10 में उल्लेख किया है कि बिल्डर द्वारा भवन का नक्शा के०डी०ए० से स्वीकृत प्लान के अनुसार बनाया गया। रजिस्ट्री के प्रथम पृष्ठ पर उल्लेख है कि

बहुमंजिल भवन का कुल आच्छादित क्षेत्रफल 356.07 वर्ग मीटर है विद्युत प्रदाय संहिता 2005 की धारा 4.9 के अनुसार एकल बिन्दु पर विद्युत संयोजन नये घरेलू संयोजन, बहुमंजिली भवनों कालोनियों को 25 के0डब्लू0 से अधिक भार के साथ प्रदान किया जायेगा। लेकिन, यह व्यक्तिगत संयोजन के लिए लागू करने से व्यक्तिगत स्वामी को निर्बन्धित नहीं करेगा और अनुप्तिधारी एल0टी0 पर ऐसे आवेदक को संयोजन स्वीकृत करेगा। इसी धारा के अन्तर्गत दिये गये दिशा निर्देशों के अनुसार जिस बहुमंजिले भवन का आच्छादित क्षेत्रफल 500 वर्ग मीटर से अधिक अथवा विद्युत भार की मांग 25 कि0वा0 से अधिक हो, वहाँ पर ही परिवर्तक लगाये जाने की आवश्यकता है।

अधिशायी अभियन्ता ने परिवादी से संयोजन हेतु प्रार्थना –पत्र प्राप्त होना स्वीकार नहीं किया परन्तु प्रबन्ध निदेशक के माध्यम से प्रार्थना–पत्र प्राप्त होना स्वीकार किया। फोरम के समक्ष परिवाद प्रस्तुत होने तक अधिशायी अभियन्ता द्वारा परिवादी को उसके प्रार्थना पत्र के सम्बन्ध में कोई समुचित उत्तर नहीं दिया गया। इससे स्पष्ट होता है कि नये संयोजन निर्गत करने में विभागीय प्रक्रिया पारदर्शी नहीं है।

केस्को के अधिकारियों द्वारा विद्युत प्रदाय संहिता 2005 की धारा 4.6 (एच) का पालन न कर परिवादी को अनावश्यक परेशान किया गया। पूर्व में तीन संयोजन इसी परिवादी को 5 कि0वा0 भार का स्थाई संयोजन निर्गत किया जाय। तत्पश्चात पूर्व में निर्गत अस्थायी संयोजन समाप्त कर दिया जाय।

आदेश का पालन एक माह के अन्दर सुनिश्चित किया जाय।”

04. The petitioners still did not comply with the said order, and, instead released an electric connection to respondent no.4 only on 28.8.2009 and that too without installing any meter. The respondent no.4 complained that despite repeated demand meter was not installed. He approached DCGRF vide Complaint dated 28.11.2009 seeking a direction that since the petitioners have violated the provisions of Supply Code, 2005, appropriate action be taken against them directing them for installation of

meter and award damages in accordance with Supply Code, 2005.

05. The above complaint was contested by petitioners. They submitted reply dated 21.1.2010 whereafter Complaint No.128 of 2009 was decided finally vide order dated 18.2.2010 and DCGRF awarded damages of Rs.9095/- to petitioners in accordance with paragraph 7.7.2 of Supply Code, 2005. In the meantime and during the pendency of said complaint, meter was installed at the premises of respondent no.4 on 21.12.2009.

06. The petitioners aggrieved by aforesaid award of damages filed an application/appeal before Electricity Ombudsman under Regulation 8.2. of UPERC (Consumer Grievance Redressal Forum) and Electricity Ombudsman Regulations, 2007 (hereinafter referred to as 'Regulation 2007') which has been rejected by means of impugned order dated 20.7.2010.

07. Sri Tripathi, learned counsel for the petitioners contended that since the meter was not available hence electricity connection was released to respondent no.4 without installation of meter. Thereafter petitioners sent indent for meter and when meter became available, the same was installed on 21.12.2009. He contended that there was no deliberate fault on the part of petitioners in compliance with DCGRF's earlier order dated 29.7.2009 and hence no damages ought to have been awarded against petitioners.

08. Perusal of the aforesaid orders passed by DCGRF as well as Electricity Ombudsman makes it clear that so far as respondent no.4 is concerned, he had submitted an application and completed all other formalities as provided in the Statute

but petitioners defaulted in releasing electricity connection to him on certain grounds which were legally unsustainable and untenable. For delay the respondent no.4 was not at fault, this fact was examined by DCGRF in order dated 9.7.2009 and it has recorded a finding of fact that Department has not shown any transparency in releasing new connection. The order shows that for various reasons which were not at all applicable for granting new electric connection to respondent no.4 there was denial of electricity connection. This approach of petitioners was not approved by DCGRF. It has also recorded a finding that consumer has been unnecessarily harassed by not complying with the requirement of paragraph 4.6(h) of Supply Code, 2005.

09. It is in these circumstances, DCGRF directed petitioners to release electricity connection of 5 KVA load to the respondent no.4 within one month. Unconcerned by the said order, petitioners find it convenient to act according to their own convenience and in that context connection was delayed by committing breach of the statutory provisions of Electricity Act, 2003. It is admitted by petitioners that electricity connection was released to the respondent no.4 only on 28.8.2009 but without installing meter. The Statute clearly contemplates that electricity connection shall be released by installing a meter.

10. Learned counsel for the petitioners could not dispute that releasing of electric connection without installing meter was illegal and not supported by any provisions of law and exfacie contrary thereto.

11. The respondent no.4 thereafter claims to have made

repeated demand for installation of meter which has not been disputed in paragraph 2 of the reply dated 21.1.2010 but it says that meter was not available for which they have indented. No material was placed before this Court or in that case even before DCGRF or the Electricity Ombudsman to show how and in what manner meter was not available. Whether the meter was lying with stores where from it was indented or it was to be purchased new. Proviso to Sections 55 (1) contemplates that a meter could be installed by a consumer himself by purchasing if he chooses so. It was always open to petitioners to avail that facility also but in their wisdom they undaunted and dared not to care of the order of DCGRF or requirement of the Statute and set at ease to proceed in their own way and convenience. They have gone to the extent of belated releasing electric connection in a wholly illegal and unauthorized manner. The date of installation of meter is 21.12.2009 mentioned in paragraph 2 of the reply filed by the petitioners themselves.

12. It is in these circumstances, both the authorities below found that the delay and latches on the part of the petitioners was fully proved and fortified. Hence damages in accordance with rules prescribed in paragraph 7.7.2 was to be imposed which has been imposed by means of impugned order and the Electricity Ombudsman have confirmed it.

13. Unfortunately and this is also strange that the Managing Director, Kanpur Electricity Supply Company Limited did not examined who is the person responsible for belated release of electricity connection and that too without installing meter, it was apt to ask its authorities to follow statutory provisions strictly. It would have been better for him to take appropriate

departmental action against such officials who have shown such laxity instead of saving and protecting them. Unfortunately he has joined the litigation as petitioner no.1 by challenging the orders which the learned counsel for the petitioners find very difficult to defend. He also could not point out any error apparent on the face of record warranting interference under Article 226 of the Constitution of India. Evidently this Court is satisfied that writ petition is wholly frivolous, unwarranted and could have been avoided. It is a futile and frivolous litigation carried to this Court by the instrumentality of the State despite repeated observations otherwise by this Court as well as the Apex Court that State and its instrumentalities should refrain from unnecessarily flooding this Court with frivolous, vexatious litigations. It appears that repeated observations are not causing any impact on the petitioners in continuing with their habit of going ahead with all kinds of litigations without prior scrutiny and examination at their own level despite of having a good team of legal experts. This is nothing but sheer wastage of precious public revenue and also highly valuable time of this Court. In the result, in my view, writ petition, being devoid of merit, deserves to be dismissed with cost.

14. Accordingly, writ petition is dismissed with cost which is quantified to Rs. 5,000/-.

Order Date :- 22.11.2011

Kpy